

Form No. INC-13



Form language

☒ English

☐ Hindi

e-MOA (e-Memorandum of Association)

[Pursuant to sections 4 and 8 of the Companies Act, 2013 and rules made thereunder read with Schedule I]

Refer instruction kit for filing the form

*All fields marked in * are mandatory*

1 The name of the company is

DK FOUNDATION OF FREEDOM
AND JUSTICE

2 The registered office of the company will be situated in the State of

Uttar Pradesh

3 (a) The objects to be pursued by the company on its incorporation are:

? To promote and protect the constitutional fundamental rights of common people. Stop death of persons detained in police custody and prison and take legal action against human rights violations.

? To get public help in solving social problems. To promote respect for all without discrimination. To promote social culture and character. To promote a peaceful environment for all. To encourage the citizens of India to abide by their rights and duties.

? Providing private security system and to help remove social evils especially from the weaker sections of the society.

? To help innocent people trapped in prisons and to help them through judicial system by advocating for bail and justice

? Establishing a free society in the country and guiding the youth towards a bright future by providing new opportunities, benefits and compensation of the schemes prescribed by the government.

? To establish, manage, control and run the medical hospital, clinics, dispensaries, mobile dispensaries / hospital,

medical check-up centers, and to provide medical treatment to the common people, Needy patients and poor families.

? To run free or low-cost educational institutions for the poor people. To run projects to promote nutrition, sanitation, and health and community development in underdeveloped areas.

? To run Old Age Homes, Orphanages, Widows Homes, Lunatic Asylums, Maternity Homes, Children Welfare Centers.

? To provide help to physically and mentally handicapped people.

? To work against such social evils like Child the Marriage, Dowry system, Child Labour, Bonded Labour etc. and wastage of money.

? To make adequate arrangements and start, run the rehabilitation centers for destitute, widows, old man, poor, beggars, handicapped and for mentally retarded persons for their social and civil upliftment.

? To work to eradicate social evils like Drug abuse, Alcohol, Cigarette, Bidi consumption.

? To organize awareness camps against such evils by all means possible.

? To prepare the awareness generation kits, posters, banners, audio-video, cassettes, documentary films etc. regarding various social issues and to fulfill the aims and objectives of the society.

? To approach the concerned authorities regarding the solution of the people's problems in different societies.

? To organize and arrange for Blood donation camp, Eye donation and Eye operation camp mobile, Hospitals in vehicles and to provide ambulance facilities for the poor and needy patients.

(b) *Matters which are necessary for furtherance of the objects specified in clause 3(a) are

1. To undertake, conduct, organize, support, encourage and participate in seminars, workshops, conferences, congresses, conventions, councils, training, lecture series, and/or group discussions to generate public awareness as well as to increase awareness among policy makers.
2. To open, found, establish, promote, set up, run, maintain, assist, support and/or help the various charitable, educational, industrial, technical/non-technical, vocational, agricultural and community development programs for all and all over in India.
3. To make donations, grant endowments and/or otherwise assist in any form whatsoever to any person(s), organizations, public charitable institutions, companies, societies, trusts, foundations, academic and/or cultural institutions who have object(s) similar to any one or more of the objects of the Company for the purpose of promoting, assisting and / or encouraging the carrying and / or achievement of such objects or object for the benefit of the people in general.
4. To raise necessary funds and accept donations, contributions (in cash or kind) subscriptions, grants of money, securities, and property of any kind and/or to undertake and accept the management of transfer ship of any endowment, trust fund or donation not inconsistent with the objects of the Company.
5. To accept donations, assistance and/or funds on behalf of the Implementing Agencies from the Government, foreign donors, and/or any other donor agency subject to such_ laws as may be applicable in the manner stated above and to obtain necessary accounts and information regarding the physical and

financial progress from the Implementing Agency / Agencies.

6. To enter into any agreement with any Government or authorities (municipal, local or otherwise) or any corporations, companies, or persons, or any cooperative society or organizations or institutions in any part of the world which may seem conducive to the Company's objects or any of them and to obtain from any such Government authority, corporation, company or person any contracts, rights, moneys, privileges, licenses and concessions which may be thought by and/or on behalf of the Company desirable to obtain and to carry out, exercise and comply therewith.

7. To enter in to partnership or any agreement for sharing, union of interest, joint-ventures, reciprocal concession or otherwise with any person, company or firm (Indian or Foreign) carrying on or engaged in or about to carry on or engage in any business or transaction which this company is authorized to carry on, or engage in any business or transaction capable of being conducted so as directly or indirectly to benefit the Company, and to take or otherwise acquire and hold shares or debentures or subscribe to the capital in that company, firm or association

8. To appeal, solicit, receive or accept grants from any government or nongovernmental institutions, agencies, authorities, public bodies, corporations, trusts, foundations, companies or person(s) and/or money, movable or immovable properties, donations, gifts, subscriptions, devices, bequests, and/or other assistance with a view to promoting the objects of the company and in receiving any gift of property to take the

same either unconditionally or subject to any special conditions which may be prescribed by the donor in writing.

9. To open and maintain branches and to undertake such other activities for furtherance of all or any one or more of the objects of the Company in accordance with the provisions made in the Rules and Regulations of the Company. To establish branches and offices in different parts of India and abroad

10. To invest the funds of the Company not immediately required in trust securities or such other investments as the Company in General Meeting may allow or think fit. Also, to invest and deal with moneys of the Company not immediately required in any manner.

11. To open and to operate current, savings and/ or fixed deposit accounts with any bank or banks and to draw, make accept, endorse, discount, execute and issue cheques, promissory notes, bills of lading, railway receipts, bills of exchange, warrants, debentures and other negotiable and instruments of all description in connection with the Company's business.

12. To make advances upon or for the purchase of land, buildings, houses, offices, flats, tenements, shops, other buildings and/or construction thereof; or for materials, goods, furniture, equipment, appliances and stores required for the Company's activities.

13. To promote and/or become a member of any Company or Companies, (whether limited by shares or guarantee or both) body or association (whether corporate or not) for the purpose of acquiring all or any of the property rights and liabilities of the Company, and / or for the furtherance of all the objects or any of them in this company.

14. To purchase/acquire lands and/or the buildings in the name of the company for the upliftment and fulfillment of the Aims and Objects of the company.

15. To erect, construct, alter, maintain, sell, lease, mortgage, transfer, improve, develop, manage and control all or any part of the property or the building of the company, necessary or convenient for the purpose of the attainment of the Aims and Objects of the company.

16. To establish and support or aid in the establishment and support of any charitable Association or Institution in all possible manner including giving donations in cash or kind for charitable purpose in any way connected with the purpose of the company or calculated to further its objects

17. To engage, employ or hire appropriate staff, workers, legal experts and other professionals, attorneys, managers and agents for the work and attainment of the Aims and Objects of the Company and to pay them wages, salaries, stipends and fees.

18. To apply for and obtain any order under any Act or Legislature, charter, privilege concession, license or authorization of any Government, State or other Authority for enabling the Company to carry on any of its main objects into effect or for extending any of the powers of the Company or for effecting and modification of

19. To publish Books, Charts, Illustrations, Journals, Magazines, Periodicals, News Letters/Papers and other publications in the different languages and on the different subjects.

20. To pay out of the funds of the company all costs, charges and expenses of and incidental to the formation and registration of the company

and any company promoted by the company and also all costs, charges, duties, impositions and expenses of and incidental to the acquisition by the company of any property or assets.

21. The doing of all such other lawful things as considered necessary for the furtherance of the above objects.

22. Each Sub Clause of this Clause shall be construed independently of the other Subclauses hereof, and that none of the objects mentioned in any Sub-clause shall be deemed to be merely subsidiary to the objects mentioned in any other Sub-clauses.

Provided that the company shall not support with its funds, or endeavor to impose on, or procure to be observed by its members or others, any regulation or restriction which, if an object of the company, would make it a Trade Union.

the doing of all such other lawful things as considered necessary for the furtherance of the above objects:

Provided that the company shall not support with its funds, or endeavor to impose on, or procure to be observed by its members or others, any regulation or restriction which, as an object of the company, would make it a trade union.

4 *The objects of the company extend to the

WHOLE OF INDIA

5 (i) The profits, if any, or other income and property of the company, when-so-ever derived, shall be applied, solely for the promotion of its objects as set forth in this memorandum.

(ii) No portion of the profits, other income or property aforesaid shall be paid or transferred, directly or indirectly, by way of dividend, bonus or otherwise by way of profit, to persons who, at any time are, or have been, members of the company or to any one or more of them or to any persons claiming through any one or more of them.

(iii) No remuneration or other benefit in money or money's worth shall be given by the company to any of its members, whether officers or members of the company or not, except payment of out-of-pocket expenses, reasonable and proper interest on money lent, or reasonable and proper rent on premises let to the company.

(iv) Nothing in this clause shall prevent the payment by the company in good faith of prudent remuneration to any of its officers or servants (not being members) or to any other person (not being member), in return for any services actually rendered to the company.

(v) Nothing in these clauses (iii) and (iv) shall prevent the payment by the company in good faith of prudence remuneration to any of its members in return for any services (not being services of a kind which are required to be rendered by a member), actually rendered to the company

6 No alteration shall be made to this memorandum of association or to the articles of association of the company which are for the time being in force, unless the alteration has been previously submitted to and approved by the Registrar.

7 The liability of the members is limited.

8. **Table applicable to Section 8/ Part I Section 8 company**

A - MEMORANDUM OF ASSOCIATION OF
A COMPANY LIMITED BY SHARES

Table A / B / C

(A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES/ B - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND NOT HAVING SHARE CAPITAL/ C - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND HAVING SHARE CAPITAL)

Each member, undertakes to contribute to the assets of the company in the event of its being wound up while he is a member or within one year afterwards, for the payment of the debts or liabilities of the company contracted before he ceases to be a member and of the costs, charges and expenses of winding up, and for adjustment of the rights of the contributories among themselves such amount as may be required not exceeding a sum of Rs *

The share capital of the company is rupees, divided into

10000	Equity Share	Shares of	10	Rupees each	
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9 True accounts shall be kept of all sums of money received and expended by the company and the matters in respect of which such receipts and expenditure take place, and of the property, credits and liabilities of the company; and, subject to any reasonable restrictions as to the time and manner of inspecting the same that may be imposed in accordance with the regulations of the company for the time being in force, the accounts shall be open to the inspection of the members. Once at least in every year, the accounts of the company shall be examined, and the correctness of the balance-sheet and the income and expenditure account ascertained by one or more properly qualified auditor or auditors

10 If upon a winding up or dissolution of the company, there remains, after the satisfaction of all the debts and liabilities, any property whatsoever, the same shall not be distributed amongst the members of the company but shall be given or transferred to such other company having objects similar to the objects of this company, subject to such conditions as the Tribunal may impose, or may be sold and proceeds thereof credited to the Rehabilitation and Insolvency Fund formed under Section 269 of the Act.

11 The Company can be amalgamated only with another company registered under section 8 of the Act and having similar objects.

☐ 12 We, the several persons, whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association:

Subscriber Details

S. No.	*Name, Address, Description and Occupation	DIN / PAN / Passport number	No. of equity shares taken	DSC	Dated
1	ASRA KHAN 20B, GATA NO 458, NEAR MS HOSPITAL, BHAKHAMAU BKT, Lucknow Uttar Pradesh 226026 Basha Lucknow India, OCCUPATION: BUSINESS	CQZPK8920N	500 Equity,0 Preference		14/07/2023
2	DANISH KHAN E37, A302, SANJAY CAMP TRILOKPUR, NEW DELHI East Delhi Delhi 110091 East Delhi East Delhi India, OCCUPATION: BUSINESS	CPEPK4703F	500 Equity,0 Preference		14/07/2023
Total shares taken			1000 Equity,0 Preference		

Signed before me

Membership type of the witness	*Name of the witness	*Address, Description and Occupation	DIN / PAN / Passport number / Membership number	*DSC	Dated
ACA	RAJAT GUPTA	S/O SANJAY KUMAR GUPTA, R/O 8/A BELI ROAD, NEW KATRA, ALLAHABAD, UP ? 211002 OCCUPATION: PRACTICING CHARTERED ACCOUNTANTS	444066	DIN3###	14/07/2023

